

Shri Mahavir Rolling Mills v. State of U.P.

Allahabad High Court · Division Bench · 17 November 2009 · Writ-C No. 68283 of 2006 · **Assessment without clause 6.8 personal hearing set aside; fresh assessment after hearing directed.**

HEADNOTE

An assessment of electricity dues passed without giving the consumer an opportunity of personal hearing is violative of clause 6.8 of the U.P. Electricity Supply Code, 2005 and cannot stand. The assessment is set aside and the Assessing Authority must re-assess after hearing, within one month of production of a certified copy.

FACTUAL SUMMARY

Shri Mahavir Rolling Mills filed a writ petition in the Allahabad High Court challenging the Assessing Officer's order dated 7 December 2006 relating to electricity dues. The petitioner's principal complaint was that the procedure under clause 6.8 of the U.P. Electricity Supply Code, 2005 had not been followed and that no opportunity of personal hearing had been given before the assessment. The respondents' counter-affidavit indicated that the procedure had been followed to some extent, but it was not disputed that personal hearing had not been afforded before the assessment order.

REUSABLE CONSTRUCTIONS

1. An assessment of electricity dues passed without giving the consumer a personal hearing is violative of Clause 6.8 and cannot stand. ¶ 1-4
2. The assessing authority must re-assess the dues in accordance with Clause 6.8 after hearing the consumer. ¶ 1-4

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

personal-hearing-before-assessment

HOLDING

An assessment of electricity dues passed without giving the petitioner an opportunity of personal hearing is violative of clause 6.8 of the U.P. Electricity Supply Code, 2005 and cannot be sustained. The assessment order dated 7 December 2006 is set aside. The Assessing Authority shall re-assess the electricity dues in accordance with clause 6.8 after giving the petitioner a hearing, and shall pass a fresh assessment order within one month of production of a certified copy of this order. ¶ 1-4